Reply to a data request: extend the time limit

A notice that the answer will take up to two more months, with the reasons, sent within the first month as Article 12(3) requires.

FOR

Organisations in the EU, Iceland, Liechtenstein or Norway that receive a request under Articles 15 to 22 of the GDPR (the EU General Data Protection Regulation): the data protection officer, privacy team or small-business owner who answers. Notes for Italy and Germany where the rules differ.

NOT COVERED

Extensions of other legal deadlines (for example under freedom-of-information laws).

LAW AS OF

GDPR (Regulation (EU) 2016/679) as published on EUR-Lex, read 7 Nov 2026; EDPB Guidelines 01/2022 on the right of access, version 2.1 (adopted 28 March 2023, minor corrections 30 May 2024); Regulation (EEC, Euratom) 1182/71, Article 3; Italian Data Protection Code (Legislative Decree 196/2003) as on Normattiva (updated to the act published on 19 Feb 2026), read 4 to 8 Nov 2026; Garante complaint page (docweb 4535524), read 7 Nov 2026; BDSG as published on gesetze-im-internet.de, last amended by the Act of 12 May 2026, read 7 Nov 2026

VERSION

1.1, 8 November 2026

When the law allows it

The one-month period *"may be extended by two further months where necessary, taking into account the complexity and number of the requests"*. The organisation *"shall inform the data subject of any such extension within one month of receipt of the request, together with the reasons for the delay"* (Article 12(3)).

The European Data Protection Board (EDPB), the body of all EU data protection regulators, says this *"is an exemption from the general rule and should not be overused"* (EDPB Guidelines 01/2022, para. 162, p. 51). Factors that can make a request complex include the amount of data, data stored in a way that is hard to retrieve, the need to redact information about others or trade secrets, and data that needs further work to be understood (para. 163, p. 51). But *"The mere fact that complying with the request would require a large effort does not make a request complex"*; a sudden surge of requests, for example after unusual publicity, may justify an extension (para. 164, p. 51).

An extension notice is not a refusal. If the organisation will not act at all, it sends the refusal reply instead, also within one month (Article 12(4); EDPB, para. 157, p. 50).

The letter

Give real reasons tied to this request. Send it before the first month ends. Reasons may be, for example: your data is held in several separate systems that must be searched one by one; the documents contain information about other people that we must remove first; we have received an unusual number of requests. The paragraph beginning 'So far we have' is optional.

ORGANISATION NAME, ADDRESS,
DATA PROTECTION CONTACT OR DATA PROTECTION OFFICER

NAME OF THE PERSON, ADDRESS OR E-MAIL THEY USED

DATE

Subject: Your request: we need more time

Your request of DATE OF THE REQUEST, received on DATE RECEIVED. Our reference: REFERENCE.

We are working on your request. We need more time to answer it fully, because REASON TIED TO THIS REQUEST.

Under Article 12(3) of the General Data Protection Regulation (GDPR) we are extending the time to answer by ONE / TWO further month(s). We will reply by NEW DATE, AT MOST THREE MONTHS AFTER THE DATE RECEIVED.

So far we have WORK DONE SO FAR. We enclose now the part we can already give you: PART ENCLOSED.

If you disagree with this extension, you can contact CONTACT, and you have the right to complain to NAME OF THE DATA PROTECTION AUTHORITY (Article 77 GDPR).

Kind regards,

NAME AND ROLE OF THE PERSON SIGNING, for ORGANISATION NAME

Check before you send

The new date is at most three months from the day the request arrived, counted the same way as the first month. Fino's Response timeline shows both dates. Record the extension and its reasons in the register.

How the organisation handles it: Handling data requests: procedure and register. Its replies: confirm receipt, confirm identity, extend the time limit, refuse or charge a fee, the answer.

The letters from the person: access, rectification, erasure, restriction, portability, objection, automated decisions.

Sources

GDPR, Regulation (EU) 2016/679 (EUR-Lex) • Used for: Articles 12, 15 to 22, 37, 38, 77 and 79, recitals; Fino's copy of each article is linked in the text

EDPB Guidelines 01/2022 on data subject rights: right of access, version 2.1 • Used for: How regulators read the right of access, time limits and identity checks (paragraphs and pages cited)

Regulation (EEC, Euratom) 1182/71 on periods, dates and time limits (EUR-Lex) • Used for: How a period in months is counted

Fino: Response timeline • Used for: Counting the one-month deadline